



CHAPTER 32.

An Act to amend certain provisions of the Patents and Designs Acts, 1907 to 1938, relating to time limits. [13th July 1939.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

1. The following section shall be substituted for section five of the Patents and Designs Act, 1907, as amended by the amending Acts (which Act as so amended is in this Act referred to as "the principal Act") :—

Time
for leaving
complete
specifica-
tion.

7 Edw. 7.
c. 29.

Time for
leaving
complete
specifica-
tion.

"5.—(1) If the applicant does not leave a complete specification with his application, he may leave it at any subsequent time within the period allowable under subsection (2) of this section.

(2) The period allowable for leaving a complete specification shall be a period of twelve months from the date of the application :

Provided that the said twelve months shall be extended to such period, not exceeding thirteen months from the date of the application, as may be specified in a request made by the

applicant to the comptroller, if the request is made and the prescribed fee is paid within the period so specified.

(3) If the complete specification is not left within the period allowable under subsection (2) of this section, the application shall be deemed to be abandoned at the expiration of thirteen months from the date thereof."

Time within which application must be in order and for acceptance of complete specification.

2.—(1) The following section shall be substituted for section eight A of the principal Act :—

Time within which application must be in order and for acceptance of complete specification.

"8A.—(1) The application must be in order within the period allowable under subsection (5) of this section.

An application shall be deemed to be in order when the complete specification has been left, or, where it has been returned to the applicant after it has been first left, has been finally left, and the applicant has satisfied all requirements to be satisfied by him by virtue of this Act, or of rules made thereunder, whether in connection with the complete specification or otherwise in relation to the application, and not before.

(2) If the application is not in order within that period, it shall become void at the expiration of twenty-one months from the date thereof or at the expiration of that period, whichever is the later.

(3) Subject to the provisions of the next succeeding subsection, if the application is in order within that period, the complete specification may be accepted at any time after the application is in order, and, if not accepted before the expiration of that period, shall be accepted as soon as may be thereafter.

(4) If the application is in order before the expiration of twenty-one months from the date thereof and within the said period, upon a request for postponement being made by the applicant before the complete specification has been accepted, and, in the case of a request for postponement to a date later than eighteen

months from the date of the application, upon payment of the prescribed fee, the comptroller may postpone acceptance of the specification to such date, not being later than the expiration of twenty-one months from the date of the application, as may be specified in the request, or, where more than one such request has been made, as may be specified in the last request.

(5) The period allowable for the purposes of this section shall be a period of eighteen months from the date of the application :

Provided that—

(a) the applicant may give notice to the comptroller that he desires the said period to be extended to nineteen, to twenty or to twenty-one months from the date of the application, and if he gives such a notice and pays the prescribed fee within the period specified in the notice, that period (or where more than one such notice has been given, the period specified in the last notice) shall be the period allowable ;

(b) if at the expiration of the period which would otherwise be the period allowable by virtue of the foregoing provisions of this subsection the last day has not passed on which an appeal under any of the provisions of this Act, either in respect of the application, or, in the case of an application for a patent of addition, in respect of the application for the original patent, could be made in accordance with the rules of the Appeal Tribunal apart from any future extension of time thereunder, or if such an appeal is then pending, then—

(i) where no appeal is made before or on the said last day or before the expiration of any extension or extensions of time for appealing beyond that day granted in the case of a first extension on an application made before or on that day and in the case of a subsequent extension on an application made before the expiration

of the last previous extension, the period allowable shall be the period beginning on the date of the application and ending on that day, or, where the time for appealing has been so extended, on the expiration of the last extension so granted;

(ii) in any other case, the period allowable shall be such period as the Tribunal may determine."

(2) The following consequential amendments shall be made in the principal Act—

- (a) in section three, in subsection (2), for the words "accept the application," there shall be substituted the words "accept the specification";
- (b) in section three, in subsection (5), for the words "application shall be accepted," there shall be substituted the words "specification shall be accepted";
- (c) in section three, in subsection (6), for the words "an application has been accepted," there shall be substituted the words "a specification has been accepted"; and
- (d) in section ninety-one, in subsection (2C), the words "to accept an application for a patent, or," shall be repealed.

Amend-
ments as to
various
time limits.

3.—(1) The principal Act shall be further amended as provided by this section.

(2) In section eleven A, in subsection (5), after the words "on an application made to him in that behalf," there shall be inserted the words "before the expiration of the said period of two months."

(3) In section twelve, in subsection (4), for the words "as soon as may be, and not after" there shall be substituted the words "not later than".

(4) In section twelve, in subsection (4), the following paragraph shall be substituted for paragraph (a):—

“(a) where the period for the leaving of the complete specification has been extended

beyond twelve months from the date of the application, or the period within which the application must be in order is longer than eighteen months from that date, or the acceptance of the complete specification has been postponed under the provisions of subsection (4) of section eight A of this Act to a date later than the expiration of eighteen months from that date, the patent may be sealed within twenty-five months from that date; ”,

and paragraphs (d) and (e) shall be repealed.

(5) In section twelve, the two following subsections shall be inserted after subsection (4) :—

“ (5) The period allowed by or under the provisions of the last preceding subsection for the sealing of a patent may from time to time be extended by the comptroller to such longer period as may be specified in an application made to him in that behalf, if the application is made and the prescribed fee is paid within that longer period :

Provided that the period so allowed as aforesaid for the sealing of a patent shall not be extended under this subsection by more than such amount (not being more than six months) as may be prescribed.

(6) Where in any case the longest period for sealing the patent allowable in that case by or under the provisions of the two last preceding subsections has been allowed, and it is proved to the satisfaction of the comptroller that hardship would arise in connection with the prosecution by an applicant of an application for a patent in any country outside the United Kingdom unless that period is extended, that period may be extended from time to time to such longer period as appears to the comptroller to be necessary in order to prevent that hardship arising if an application in that behalf is made to him, and the prescribed fee is paid, within the first-mentioned period, or in the case of a second or subsequent application

under this subsection within the period to which that period was extended on the last preceding application thereunder."

(6) In section seventeen, in subsection (1), after the words "having been", there shall be inserted the word "first", and for subsections (2) and (3) the following subsections shall be substituted:—

"(2) A patent shall, notwithstanding anything therein or in this Act, cease at the expiration of the period prescribed for the payment of any prescribed renewal fee, unless the patentee pays the fee within that period or within that period as extended under this subsection.

The period prescribed for the payment of any such fee shall from time to time be extended to such period (not exceeding a period three months longer than the prescribed period) as may be specified in a request in that behalf made by the patentee to the comptroller, if the request is made, and the fee and the prescribed additional fee (which shall not exceed ten pounds) are paid, within the period so specified.

(3) If any proceeding is taken in respect of an infringement of the patent committed after a failure to pay any renewal fee within the prescribed period, and before any extension thereof, the court before which the proceeding is proposed to be taken may, if it thinks fit, refuse to award any damages in respect of such infringement."

(7) In section twenty-seven, in subsection (9), after the word "application" where that word first occurs there shall be inserted the words "(made either before or after the expiration of the prescribed time)".

(8) In section fifty-three, in subsection (2) after the word "may", and in subsection (3) after the word "may" where that word first occurs, there shall be inserted the words "on a request made to him before the expiration of that further time".

Provisions
as to failure

4.—(1) No patent granted, and no extension of the period of copyright in a registered design made,

before the commencement of this Act shall be treated as invalid by reason only of an act done before the commencement of this Act by an applicant, the comptroller or any other person, not having been done within the time limited for the doing thereof by the Patents and Designs Act, 1907, or that Act as amended at the time the said act was done, or by rules made thereunder.

to comply with certain time limits of the principal Act.

(2) In the case of an application for a patent made before the commencement of this Act which has not up to that time been treated by the comptroller otherwise than as a subsisting application, but which under the provisions of the Patents and Designs Act, 1907, as for the time being amended, is deemed to have been abandoned, or has become void, at any time before the commencement of this Act, by reason only of the failure of the applicant, or of the comptroller or of any other person, to comply with any requirement as to time limits of that Act as so amended or of rules made thereunder, the comptroller may, if it appears to him that there would have been no substantial non-compliance with the provisions of the principal Act, as amended by this Act, if this Act had been in force at the date of the failure, permit the application to proceed, and thereupon the application shall be treated as not having been abandoned, or as not having become void, as the case may be.

5.—(1) This Act may be cited as the Patents and Designs (Limits of Time) Act, 1939, and the Patents and Designs Acts, 1907 to 1938, and this Act may be cited together as the Patents and Designs Acts, 1907 to 1939.

Short title, citation, interpretation and printing.

(2) In this Act the expression “the amending Acts” means the Patents and Designs Act, 1914, the Patents and Designs Act, 1919, the Patents and Designs (Convention) Act, 1928, the Patents and Designs Act, 1932, and the Patents, &c. (International Conventions) Act, 1938.

4 & 5 Geo. 5.
c. 18.
9 & 10 Geo. 5.
c. 80.
18 Geo. 5. c. 3.
22 & 23 Geo. 5.
c. 32.
1 & 2 Geo. 6.
c. 29.

(3) References in any Act passed before this Act to the Patents and Designs Act, 1907, shall, unless the context otherwise requires, be construed as references to that Act as amended by the amending Acts and this Act.

(4) A copy of the Patents and Designs Act, 1907, with the amendments effected by the amending Acts

and this Act shall be prepared and certified by the Clerk of the Parliaments and deposited with the Rolls of Parliament, and His Majesty's printer shall print copies of the Patents and Designs Act, 1907, in accordance with the copy so certified.

(5) This Act shall come into operation at the expiration of one month from the date on which it is passed.

Printed by EYRE AND SPOTTISWOODE LIMITED

FOR

SIR WILLIAM RICHARD CODLING, C.B., C.V.O., C.B.E., the King's Printer of
Acts of Parliament

To be purchased directly from H.M. STATIONERY OFFICE at the following addresses :
York House, Kingsway, London, W.C.2; 120 George Street, Edinburgh 2;
26 York Street, Manchester 1; 1 St. Andrew's Crescent, Cardiff;
80 Chichester Street, Belfast;
or through any bookseller

Price 2d. net